



STUDY GUIDE / 01

Duty of Care

An introductory guide to negligence in England and Wales, with a close look at *Donoghue v Stevenson*, a Scottish case that shaped English negligence law.

1. Start with the relationship

A **duty of care** is a legal obligation to take reasonable care towards another person in a particular situation. It is the first question in a negligence claim: **did this defendant owe this claimant a relevant duty?**

Negligence is a civil wrong involving a failure to take legally required reasonable care. A person can be careless in everyday language without being legally liable to everyone who suffers a loss.

Reasonable care is not a guarantee. The law does not require a person to prevent every possible accident. It asks whether reasonable precautions were required in the circumstances and whether the person took them.

2. Four questions in a negligence claim

Duty: Was the defendant under a relevant obligation to take care?

Breach: Did the defendant fail to meet the required standard of care?

Causation: Did that failure cause the claimant's harm?

Damage: Is the harm of a kind for which the law permits recovery?

These questions are connected, but different. A duty may exist even if it was not breached. A breach may occur without causing the claimant's injury. This guide concentrates on **duty**.

3. A simple example - invented

You are organising a campus event. You leave a heavy speaker on an unstable stand beside the audience. A visitor is injured when it falls. Start by asking whether you owed care to visitors exposed to that danger. Then examine the precautions, the cause of the injury and the recoverable loss. Do not jump directly from “someone was injured” to “someone must pay”.

Words to recognise

Tort: a civil wrong for which the law provides a remedy. **Claimant:** the person bringing a claim. **Defendant:** the person or organisation being sued. **Liability:** legal responsibility. **Damage:** harm or loss. **Damages:** money awarded as compensation.



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Donoghue v Stevenson: the problem and the result

4. The alleged facts (1932) [1]

Mrs Donoghue visited a cafe in Paisley, Scotland, with a friend. The friend bought ginger beer for her. Some of the drink was poured over ice cream, and Mrs Donoghue drank it. She alleged that the remaining contents revealed a decomposed snail and that she suffered illness as a result.

The bottle was **opaque**: its contents could not be seen through the glass. That mattered because someone handling the closed bottle could not readily discover what was inside.

Important: the House of Lords considered whether the alleged facts could support a legal claim. It did not conduct a trial to prove that the snail existed or that the manufacturer had actually been negligent.

5. Who was involved?

Person or business	Role
Mrs Donoghue	Consumer and claimant
Her friend	Bought the drink from the cafe
The cafe retailer	Sold and served the drink
Stevenson	Ginger-beer manufacturer and defendant

6. Why the absence of a contract mattered

Mrs Donoghue had no contract with Stevenson. Her claim therefore required an obligation arising in negligence, independently of contract. The question was whether a manufacturer could owe reasonable care to the ultimate consumer of the drink.

Who won, and why? Mrs Donoghue won her appeal by a 3-2 majority. The House of Lords held that the alleged circumstances could establish a manufacturer's duty to the consumer despite the absence of a contract. Her claim could proceed; the court did not award final damages at this stage.

Precision: Stevenson manufactured the ginger beer; describing him simply as the bottle manufacturer is misleading. This appeal did not establish a general rule that retailers can never be liable for products they sell.



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The neighbour principle

7. Who is my legal neighbour? [1]

Lord Atkin used the idea of a “neighbour” to explain the legal relationship. In simple terms, think about people closely and directly affected by your conduct whom you should reasonably have in mind. Your legal neighbour need not live nearby, be your friend or have a contract with you.

Two useful ideas

Reasonable foreseeability: could a reasonable person anticipate the relevant risk of harm? You do not need to predict every detail of the accident.

Proximity: is there a sufficiently close legal relationship between the parties? This is not simply a measurement of physical distance.

In the manufacturer-consumer setting: the product was intended to reach its ultimate consumer in the condition in which it left the manufacturer, without a reasonable opportunity for intermediate examination. A duty of reasonable care could exist in those circumstances.

8. Apply the idea - invented examples

A gifted drink: Lin buys a sealed drink for Mei. Mei is the consumer, although she did not pay. Ask whether the manufacturer should have had consumers such as Mei in mind, rather than treating payment as the only possible basis of responsibility.

A distant consumer: a drink is produced in one city and consumed in another. Physical distance does not, by itself, decide proximity. Identify the legal relationship and the risk arising from the product.

A corridor hazard: a student spills water in a busy corridor. People walking through it are an obvious group to consider. A full negligence claim still requires the other elements; this example is not a court decision.

9. Keep the historical claim accurate

It is too broad to say that, before Donoghue, duties of care existed **only** within contracts. Earlier law already recognised some duties outside contract. Donoghue provided a landmark statement of principle and recognised the duty in its particular manufacturer-consumer setting. [1]

Modern reading: the neighbour principle is a foundation, not a universal formula deciding every duty question. Courts start with established cases and principles; genuinely new situations require careful development by analogy. Special rules may apply to omissions and pure economic loss. [2]



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Check your understanding

Answer first, then compare your reasoning. The examples in this guide are teaching scenarios, not decided cases.

1. What is a duty of care?

Answer: A legal obligation to take reasonable care towards another person in a particular situation.

2. Does recognising a duty prove the whole negligence claim?

Answer: No. Breach, causation and legally recoverable damage must also be established.

3. Who bought the drink, and who consumed it?

Answer: Mrs Donoghue's friend bought it; Mrs Donoghue consumed it. They were different people.

4. Why did the opaque bottle matter?

Answer: It made checking the contents difficult before consumption. The opportunity for intermediate examination mattered to the manufacturer-consumer duty.

5. What exactly did Mrs Donoghue win in the House of Lords?

Answer: She won the appeal allowing her negligence claim to proceed. This was not a final award of damages or a finding that the snail had been proved.

6. True or false: your legal neighbour must live near you.

Answer: False. The idea concerns a sufficiently close legal relationship and foreseeable effects, not simply physical distance.

7. True or false: a contract is always necessary for a duty of care.

Answer: False. An obligation in negligence may exist independently of contract.

8. A person takes reasonable precautions, but an accident still happens. Does the accident alone prove a breach?

Answer: No. Reasonable care is not a promise that no accident will ever happen. The precautions and circumstances must be examined.

Sources | checked 4 October 2026

[1] **Donoghue v Stevenson [1932] AC 562**. House of Lords, 26 May 1932. Lord Atkin: neighbour principle and manufacturer-consumer duty; Lord Macmillan: negligence independently of contract. [Read the judgment](#) (University of Trier copy).

[2] **Robinson v Chief Constable of West Yorkshire Police [2018] UKSC 4**. UK Supreme Court. See paras 21-30 and 33-37 for the modern method and omissions. [Read the official judgment](#).